

23STCV19401 23STCV19401

County: los-angeles

Division: Civil Law and Motion

Department: 517

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Pending before the Court is the demurrer of Defendants Stiiizy, Inc., Tony Huang, and Samuel Cho to the sixth cause of action for fraud in the Plaintiffs' Third Amended Complaint ("the TAC"). The Court need not decide whether, as Plaintiffs contend, the Defendants' demurrer is improper and should be overruled because it recycles arguments the Defendants made in demurrers to the fraud claim in the Plaintiffs' First and Second Amended Complaints that the Court rejected in its rulings on those demurrers. The Court is instead overruling the pending demurrer on the ground that the allegations in the TAC are sufficient to support Plaintiffs' fraud claim under theories of either promissory fraud, fraudulent misrepresentation, or fraudulent concealment.